

25STCV07799 25STCV07799

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Case Number: 25STCV07799 Hearing Date: August 20, 2026 Dept: 307

17 TENTATIVE RULING 8:30 a.m., Thursday, August 20, 2026

MICHAEL

ANTONIO BROWN v. AMBUSERVE, INC. [25STCV07799]

DEFENDANT

AMBUSERVE, INC.'S MOTION FOR SUMMARY JUDGMENT, OR IN THE ALTERNATIVE, SUMMARY
ADJUDICATION AS TO THE COMPLAINT

TIMELINE:

Alleges Labor Code violations and wrongful termination

3/28/2022: Defendant AmbuServe, Inc.

("Defendant") hires Plaintiff Michael Brown ("Plaintiff") to work the nighttime-only shift as a critical care transport ("CCT") respiratory therapist. (Harris Decl., ¶¶ 12-13, 17, Exh. A; Smith Decl., ¶ 3.) Plaintiff's job involved providing respiratory therapy services to individuals being transported by ambulance, on both pre-scheduled calls and emergencies. (Harris Decl., ¶¶ 12-13; Brown Depo., at pp. 90:15-91:8, 114:5-16.)

8/2022: Plaintiff asks Defendant's management

what he should do regarding missing meal and rest breaks. (Brown Depo., at pp. 115:10-116:16; Buck Depo., at p. 65:1-8; Brown Decl., ¶¶ 8-9.)

9/2022: Defendant investigates Plaintiff's

complaint. (Diaz Decl., ¶¶ 3-4; Buck Depo., at pp. 65:1-69:2.) During the investigation, Defendant reviewed time records and paid Plaintiff a meal period premium for any shift where the proper time code had not been recorded for Plaintiff. (Diaz Decl., ¶¶ 3-4; Brown

Depo., at pp. 133:3-134:2; Buck Depo., at pp. 65:1-69:2, 159:7-161:2.)

2/2023: Defendant's management decides to discontinue the CCT respiratory therapist night shift due to low demand causing lack of financial viability. (Harris Decl., ¶¶ 14-15, 17, Exh. D; Smith Decl., ¶¶ 3-4; Buck Depo., at pp. 21:2-17, 33:7-21, 36:4-37:15, 38:4-10, 40:3-41:8.)

3/16/2023: Plaintiff emails Scott Buck, one of Defendant's directors, to complain about being "displaced." (Brown Depo., at pp. 161:24-166:7; Buck Depo., at p. 23:5-13; Brown Decl., ¶¶ 13-14.) The following day, on 3/17/2023, Mr. Buck calls Plaintiff and notifies him that the night shift was being discontinued. (Ibid.) However, Plaintiff is offered a day shift at a different location. (Brown Depo., at pp. 171:18-173:25.)

Plaintiff continues to report missed meal and rest breaks through the end of his night shift on 3/26/2023. (Harris Decl., ¶¶ 14-15, 17, Exh. D; Smith Decl., ¶¶ 3-4; Buck Depo., at pp. 21:2-17, 33:7-21, 36:4-37:15, 38:4-10, 40:3-41:8.)

Late 2023: Plaintiff initiates a workers' compensation claim regarding his employment with Defendant. (Brown Depo., at pp. 40:21-41:9, 184:8-186:13.)

10/2023: The workers' compensation claim is settled. (Brown Depo., at pp. 184:8-186:13; Khatib Decl., Exh. D.) On 10/13/2023, Plaintiff signs a voluntary resignation from his employment with Defendant as part of the settlement. (Brown Depo., at pp. 184:8-186:13; Khatib Decl., Exh. D.)

3/17/2025: Plaintiff files the Complaint, alleging causes of action for:

1. Retaliation (Labor Code section 1102.5)

2. Retaliation (Labor Code section

98.6)

3. Wrongful Termination in Violation
of Public Policy

4. Unfair Competition

2/27/2026: Defendant files this Motion for
Summary Judgment/Adjudication[1],
which is followed by Plaintiff's Opposition (5/12/2026) and Defendant's Reply (5/22/2026).

TENTATIVE

RULING: DEFENDANT AMBUSERVE, INC.'S MOTION FOR SUMMARY JUDGMENT/ADJUDICATION AS
TO THE COMPLAINT is GRANTED.

I. MOTION
FOR SUMMARY JUDGMENT

A.

1st
and 2nd Causes of Action: Retaliation in Violation of Labor Code §§
1102.5 and 98.6 – GRANTED

No

triable issues of material fact exist with respect to Plaintiff's first and
second causes of action for retaliation under the Labor Code. Plaintiff's retaliation
claims both allege that he complained to Defendant's management about various
alleged violations of California's wage and hour protections, including
Defendant's "failure to provide meal and rest breaks and failure to pay all
wages owed." (Compl., ¶¶ 4,
14.) In response, Plaintiff alleges that Defendant subjected Plaintiff to
adverse employment actions, including demoting him to inferior work shifts and
constructively terminating Plaintiff "by not assigning him any work after he
complained..." (Id. ¶¶ 5, 15.) Thus, Plaintiff alleges that Defendant
unlawfully retaliated against Plaintiff for his wage-and-hour complaints in
violation of Labor Code section
1102.5, subdivisions (b) and (c) and section 98.6.

Labor

Code section 1102.5, subdivision (b) "prohibits retaliation for disclosing

information about a violation or noncompliance with federal, state, or local statute, rule, or regulation.” (St. Myers v. Dignity Health (2019) 44 Cal.App.5th 301, 307 (St. Myers); see Lab. Code § 1102.5, subd. (b).) “Subdivision (c) of that section prohibits retaliation against an employee for refusing to participate in such activity.” (St. Myers, supra, 44 Cal.App.5th at p. 307; see Lab. Code § 1102.5, subd. (c).) Labor Code section 98.6 “prohibits discharging an employee for filing a bona fide complaint or claim relating to her rights under the jurisdiction of the Labor Commissioner.” (St. Myers, supra, 44 Cal.App.5th at p. 307; see Lab. Code § 98.6.) To establish a prima facie case for retaliation under either section, a plaintiff must establish that “(1) she engaged in a protected activity, (2) her employer subjected her to an adverse employment action, and (3) a causal link between the two.” (St. Myers, supra, 44 Cal.App.5th at p. 314; see CACI, No. 4603.)

1.

Defendant

Fails to Conclusively Demonstrate That Plaintiff's Complaints Were Not A Protected Activity (Issue Nos. 1 & 3)

First, Defendant

argues that Plaintiff's retaliation claims under both statutes must fail because Plaintiff did not have a reasonable belief that he was reporting a violation of the law, and thus, the complaints were not protected under the Labor Code. (Mot., at p. 15.) The Labor Code “does not protect employees who do not believe or who unreasonably believe that the information they are disclosing shows a violation of the law.” (People ex rel. Garcia-Brower v. Kolla's, Inc. (2023) 14 Cal.5th 719, 731.) In this case, Defendant argues that Plaintiff received training on meal and rest breaks, which should have led him to understand the law on breaks for emergency ambulance employees in California. (Mot., at p. 16.) The Court is not persuaded by this inference.

Even if

Plaintiff was provided with a copy of Defendant's meal and rest break policies upon hire, or received limited training about meal and rest breaks, Defendant's minimal evidence that Plaintiff knew or should have known Defendant's policies and California law, standing alone, is insufficient to establish that Plaintiff had no reasonable cause to believe that he was disclosing a violation of California's wage and hour laws. (Brown Depo., at p. 93:2-22; Harris Decl., ¶¶

6, 11, 17.) In fact, Defendant's own evidence reveals that Defendant's dispatchers were not consistently logging Plaintiff's breaks with the correct code and that Defendant opted to pay Plaintiff premiums to compensate him for improperly recorded meal and break periods. (Diaz Decl., ¶ 3; Brown Depo., at pp. 133:3-134:2; Buck Depo., at pp. 65:1-69:2, 126:2-7, 136:3-9, 159:7-161:2.) At minimum, the fact that Plaintiff raised concerns about Defendant's meal and rest break practices which led Defendant to uncover errors in its records supports an inference that Plaintiff had a good faith belief that he was reporting a violation of the law. What Plaintiff knew about California's wage and hour laws and whether his beliefs were reasonable under the circumstances are factual questions that cannot be resolved on summary proceedings.

2.

Plaintiff

Fails To Demonstrate That He Was Subjected To An Adverse Employment Action In Retaliation For His Complaints And Defendant Had A Legitimate, Independent Business Reason For Its Decision (Issue Nos. 2 & 4)

a.

Adverse

Employment Action

Second, Defendant

argues that Plaintiff cannot establish a causal connection between his complaints and any alleged adverse action. (Mot., at p. 16.) On this point, the Court agrees. It is undisputed that Plaintiff reported his missed meal and rest breaks between August 2022 and March 26, 2023. (Harris Decl., ¶ 17, Exh. D; Brown Depo., at pp. 115:10-116:16; Buck Depo., at p. 65:1-8.) The only "adverse employment action" which Plaintiff alleges he was subjected to by Defendant was Plaintiff's "constructive discharge" through Defendant's elimination of the night shift. (Compl., ¶¶ 5, 15; see Opp., at pp. 7-8.)

To be

actionable, an "adverse employment action" must materially affect the terms, conditions, or privileges of employment." (McRae v. Department of Corrections & Rehabilitation, (2006) 142 Cal.App.4th 377, 386-387.) "[T]he plaintiff must show the employer's actions had a detrimental

and substantial effect on [her] employment.” (Ibid.) Thus, “the mere fact that an employee is displeased by an employer’s act or omission does not elevate that act or omission to the level of a materially adverse employment action.” [Citation.]” (Ibid.) For example, “[c]onstructive discharge occurs when the employer’s conduct effectively forces an employee to resign. Although the employee may say, ‘I quit,’ the employment relationship is actually severed involuntarily by the employer’s acts, against the employee’s will. As a result, a constructive discharge is legally regarded as a firing rather than a resignation.” (Turner v. Anheuser-Busch, Inc. (1994) 7 Cal.4th 1238, 1244–1245 (Turner).) “In order to establish a constructive discharge, an employee must plead and prove, by the usual preponderance of the evidence standard, that the employer either intentionally created or knowingly permitted working conditions that were so intolerable or aggravated at the time of the employee’s resignation that a reasonable employer would realize that a reasonable person in the employee’s position would be compelled to resign.” (Id. at p. 1251.) “Under the cases, an employee cannot simply ‘quit and sue,’ claiming he or she was constructively discharged. The conditions giving rise to the resignation must be sufficiently extraordinary and egregious to overcome the normal motivation of a competent, diligent, and reasonable employee to remain on the job to earn a livelihood and to serve his or her employer. The proper focus is on whether the resignation was coerced, not whether it was simply one rational option for the employee.” (Id. at p. 1246.)

It is well-established that “the standard by which a constructive discharge is determined is an objective one.” (Turner, supra, 7 Cal.4th at p. 1248.) The relevant “question is ‘whether a reasonable person faced with the allegedly intolerable employer actions or conditions of employment would have no reasonable alternative except to quit.’” (Ibid.) In other words, the test for a “constructive discharge” is whether, considering the totality of the circumstances, the plaintiff’s working conditions were so unusually adverse or intolerable that “that any reasonable employee would resign rather than endure such conditions.” (Id. at p. 1247, italics added.)

Here, there is no dispute that Defendant opted to discontinue the “night shift” for CCT respiratory therapists in early 2023. (Harris Decl., ¶¶ 14-15; Smith Decl., ¶¶ 3-4; Buck Depo., at pp. 21:2-17, 33:7-21, 36:4-37:15, 38:4-10, 40:3-41:8.) As an alternative to the night shift, Plaintiff was instead offered to work a “day shift” at a different location 40

miles away. (Brown Depo., at pp. 34:24-35:11, 49:15-50:15, 103:9-19, 132:15-133:10, 171:18-173:25, 174:16-22, 171:18-173:25; Buck Depo., at p. 33:22-34:22.) Plaintiff argues that the unilateral cancellation of the night shift created an “intolerable” working condition that made Plaintiff’s continued employment impossible. (Opp., at p. 8.) Plaintiff characterizes the “day shift” position as “intolerable” because Plaintiff was unavailable to work during the day due to his personal obligations as a caretaker for his disabled wife. (Brown Depo., at pp. 49:15-50:15.) From an objective standpoint, however, the Court finds that the transition from a “night shift” to a “day shift” could not have created such “aggravated” or “intolerable” conditions that a reasonable employee would have been forced to resign from his position as a CCT respiratory therapist. While Plaintiff may have subjectively preferred the night shift due to his family obligations during daytime hours, it cannot be said that the working conditions available to Plaintiff were so objectively egregious or intolerable that Plaintiff had no other option but to resign in response to the working conditions themselves (as opposed to Plaintiff’s outside responsibilities unrelated to Defendant’s workplace itself).

Plaintiff

offers no evidence to suggest that the “day shift” position offered to Plaintiff after the night shift was discontinued resulted in a pay cut or a change in benefits, constituted a demotion in status, or altered Plaintiff’s on-the-job duties or workload in any manner. Nor does Plaintiff submit any evidence that Defendant breached any contractual agreement with Plaintiff that he would be entitled to stay on the night shift indefinitely or that Defendant agreed to provide Plaintiff with a special shift schedule to formally accommodate his caretaking responsibilities. Plaintiff’s mere personal preference for the night shift and his dissatisfaction that Defendant’s reorganization of the CCT respiratory therapist shifts did not match his family’s needs does not convert the decision into an “adverse employment action” as a matter of law. (Malais v. Los Angeles City Fire Dept., (2007) 150 Cal.App.4th 350, 358 [employee’s dissatisfaction with their assignment is not an adverse action]; Francis v. City of Los Angeles (2022) 81 Cal.App.5th 532, 541 [“Minor or relatively trivial adverse actions by employers or fellow employees that, from an objective perspective, are reasonably likely to do no more than anger or upset an employee do not materially affect the terms or conditions of employment.”].)

b.

Legitimate,

Non-Retaliatory Business Reasons & Pretext

Even if

Plaintiff could demonstrate by the preponderance of the evidence that the discontinuation of the night shift created objectively intolerable working conditions, Defendant has successfully demonstrated by clear and convincing evidence that the personnel decision was motivated by a legitimate business reason independent from Plaintiff's complaints. (*Lawson v. PPG Architectural Finishes, Inc.* (2022) 12 Cal.5th 703, 707 (*Lawson*)). Meanwhile, Plaintiff fails to demonstrate that Defendant's proffered motive is pretext for a retaliatory motive. (*Ibid.*)

The Court

briefly notes that Plaintiff's two Labor Code claims slightly diverge with respect to their evidentiary burdens related to this analysis. For most retaliation claims under Labor Code, including section 98.6, California courts have generally applied the same burden-shifting framework borrowed from the United States Supreme Court in *McDonnell Douglas Corp. v. Green* (1973) 411 U.S. 792 (*McDonnell Douglas*), as is used in retaliation claims under FEHA. Under *McDonnell Douglas*'s three-step test: (1) the employee first must establish a prima facie case of unlawful retaliation, then (2) the employer bears the burden of articulating a legitimate reason for taking the challenged adverse employment action, and finally, (3) the burden shifts back to the employee to demonstrate that the employer's proffered legitimate reason is merely pretext for the employer's retaliatory motive. (*Lawson*, *supra*, 12 Cal.5th at p. 708, *McDonnell Douglas*, *supra*, 411 U.S. 792 at pp. 802-804.)

By comparison,

for whistleblower retaliation claims under Labor Code section 1102.5 in particular, the California Supreme Court has held that a plaintiff need not satisfy the three-step *McDonnell Douglas* test in order to discharge his burden. (*Lawson*, *supra*, 12 Cal.5th at p. 718.) Instead, for claims brought under Labor Code section 1102.5, the applicable burden-shifting framework is set forth by the Legislature under Labor Code section 1102.6. (*Id.* at p. 712.) Under this framework, "[o]nce an employee-whistleblower establishes by a preponderance of the evidence that retaliation was a contributing factor in the employee's termination, demotion, or other adverse action, the employer then bears the burden of demonstrating by clear and convincing evidence that it would have taken the same action 'for legitimate, independent reasons.'" (*Lawson*, *supra*, 12 Cal.5th at p. 707, citing Lab. Code, § 1102.6.) In other words, "section

1102.6 affords employers an affirmative defense, if they prove the alleged retaliatory action 'would have occurred for legitimate, independent reasons' had the employee not been a whistleblower. This type of defense is commonly known as a 'same-decision defense.'" (Lampkin v. County of Los Angeles (2025) 112 Cal.App.5th 920, 924 (Lampkin).)

In this

case, under both standards, Plaintiff's retaliation claims necessarily fail. Defendant argues that it discontinued the entire CCT respiratory therapist night shift position (not solely Plaintiff's position) due to low demand. (Mot., at p. 16; Harris Decl., ¶¶ 14-15; Smith Decl., ¶¶ 3-4; Buck Depo., at pp. 21:2-17, 33:7-21, 36:4-37:15, 38:4-10, 40:3-41:8.) Defendant submits substantial call data to support its contention that the decision was driven by a legitimate lack of demand. For 93 of Plaintiff's 167 shifts, he performed no patient transports. (Diaz Decl., ¶ 7; Brown Depo., at p. 159:17-24.) For 51 of Plaintiff's 167 shifts, Plaintiff performed only one patient transport, averaging two hours and fourteen minutes of active work total for those shifts. (Diaz Decl., ¶ 7; Brown Depo., at p. 160:2-9.) For 13 of Plaintiff's 167 shifts, Plaintiff performed two patient transports, averaging four hours and nineteen minutes of active work total for those shifts. (Diaz Decl., ¶ 7.) For 5 of Plaintiff's 167 shifts, Plaintiff performed three patient transports, averaging five hours and thirty-three minutes of active work total for those shifts. (Ibid.) For only 1 of Plaintiff's 167 shifts, Plaintiff performed four patient transports, for a total of ten hours and three minutes of active work total for that shift. (Ibid.) Plaintiff worked no shifts which required more than four patient transports. (Ibid.) Based on the low patient demand, Defendant operated at a financial loss, earning less revenue than it was required to pay to maintain the night-only ambulance team. (Harris Decl., ¶¶ 16-17, Exh. D.) Plaintiff's purported disagreement with these statistics (which he fails to support with any concrete statistical evidence) is merely speculative and insufficient to dispute Defendant's data. (See Brown Decl., ¶ 17; Brown Depo., at pp. 160:21-161:1.) In fact, Plaintiff does not dispute that he was responding to zero patient calls on the majority of his night shifts. (Diaz Decl., ¶¶ 5-6; Buck Depo., at pp. 65:1-69:2; Harris Depo., at p. 97:6-12.) Plaintiff fails to meaningfully dispute that the night shift was, in Plaintiff's words, a "financial loser." (Opp., at p. 8.)

Additionally,

since the discontinuation of the night shift on March 26, 2023, Defendant has employed no other CCT respiratory therapist in a night shift position. (Harris Decl., ¶ 18.) Although Plaintiff argues that Defendant has continued to employ

an on-call 24-hour respiratory therapist to cover nights since at least 2015, this evidence does not dispute the central fact that the night-only position was categorically discontinued for all employees. (Buck Depo., at p. 30:2-8, 158:2-17; Harris Depo., at pp. 256:7-11, 312:22-313:9.) As Defendant points out in its reply, night shift coverage through a 24-hour shift is distinct from the 12-hour night-only shift which was discontinued after about one year of its creation. (Rep., at p. 6; Harris Decl., ¶¶ 12-13.) Based on the above evidence, the Court finds that Defendant has overcome its burden of demonstrating (by clear and convincing evidence) that it discontinued the night shift position for legitimate financial reasons, independently of Plaintiff's complaints.

Plaintiff

argues that Defendant's financial explanation for its discontinuation of the night shift is mere pretext for a retaliatory motive based on the temporal relationship between Plaintiff's complaints and the discontinuation of the position. (Opp., at p. 8.) Specifically, Plaintiff contends that he made his final complaint just one day prior to Defendant's announcement that the night shift position was being discontinued. (Buck Depo., at p. 23:5-13, 161:24-166:7; Brown Depo., at pp. 171:18-173:25; Brown Decl., ¶ 13-14.) Even so, in California, temporal proximity alone is not sufficient to raise a triable issue as to pretext where an employer has offered a legitimate, non-retaliatory reason for the alleged adverse action. (Arteaga v. Brink's, Inc., 2008) 163 Cal.App.4th 327, 357 (Arteaga) ["Where the employee relies solely on temporal proximity in response to the employer's evidence of a nonretaliatory reason for termination, he or she does not create a triable issue as to pretext, and summary judgment for the employer is proper."].)

Plaintiff's

narrow characterization of Defendant's decision-making timeline also ignores the evidence of the year-long series of events leading up to its decision. Plaintiff's night shift-only position was created in early 2022 after Defendant entered into a hospital contract for ambulance services. (Harris Decl., ¶¶ 12-13; Smith Decl., ¶ 3.) Plaintiff was hired for the night shift-only position in late March 2022. (Harris Decl., ¶¶ 12-13, 17, Exh. A; Smith Decl., ¶ 3.) After approximately five months of work, Plaintiff began complaining about Defendant's meal and rest break practices in August 2022. (Brown Depo., at pp. 115:10-116:16; Buck Depo., at p. 65:1-8; Brown Decl., ¶¶ 8-9.) In September 2022, Defendant conducted an audit of its time records in response to

Plaintiff's complaints, during which Defendant discovered the low patient call rate during Plaintiff's night shifts. (Diaz Decl., ¶¶ 3-6; Buck Depo., at pp. 65:1-69:2.) Plaintiff argues, however, that Defendant had known the night shift was losing money by early 2022 (around the time the new position was created). (Harris Depo., at pp. 95:19-23, 97:6-17, 173:13-25.) Regardless, Plaintiff ignores Defendant's CEO's testimony stating that it was typical to give new contracts at least one year before cancelling due to underperformance. (Id. at p. 97:6-17.) That Plaintiff's complaints may have prompted Defendant to conduct a formal audit of the time records for the new position during its investigation of Plaintiff's initial complaints is not inconsistent with Defendant's characterization of the events.

Defendant's evidence shows that its management team officially decided to discontinue the CCT respiratory therapist night shift in February 2023. (Harris Decl., ¶¶ 14-15; Smith Decl., ¶¶ 3-4; Buck Depo., at pp. 21:2-17, 33:7-21, 36:4-37:15, 38:4 10, 40:3-41:8.) In his Separate Statement, Plaintiff concedes that "Defendant decided to cancel the nightshift two to three weeks before [Plaintiff's] March 16, 2023 email," which is entirely consistent with Defendant's proffered timeline. (Material Fact No. 28, citing Buck Depo. at p. 21:5-17, italics added.) This timeline is also consistent with Defendant's intent to re-evaluate the viability of the position after approximately one year. (Harris Depo., at p. 97:6-17.) At this point, Plaintiff had already been complaining about his missed breaks for over six months. (Harris Decl., ¶ 17, Exh. D.) In sum, Plaintiff's attempt to establish a temporal connection between his complaints and the discontinuation of his preferred shift does not undermine Defendant's ability to demonstrate by clear and convincing evidence that it would have made the same business decision regardless of Plaintiff's complaints.[2]

Accordingly, the Court finds that Plaintiff is unable to dispute Defendant's clear and convincing showing that it would have categorically discontinued the recently created night shift-only position due to its lack of financial viability even if Plaintiff had not engaged in his protected complaints, and Plaintiff fails to raise a triable factual dispute as to whether Defendant's financial explanation for this decision was merely pretext for an underlying retaliatory motive. Thus, even if Plaintiff were able to establish a prima facie claim for retaliation, Plaintiff's retaliation claims must fail based on Plaintiff's inability to overcome either the McDonnell Douglas test (with respect to the Labor Code section 98.6 claim) or Defendant's "same decision" affirmative defense

(with respect to the Labor Code section 1102.5 claim). (Lawson, supra, 12 Cal.5th at p. 708; Lampkin, supra, 112 Cal.App.5th at p. 924.)

Therefore,

Defendant is entitled to summary adjudication in its favor on Plaintiff's first and second causes of action for retaliation.

3.

Statute
of Limitations (Issue No. 5)

Alternatively,

Defendant argues that Plaintiff's retaliation claim under Labor Code section 98.6 fails because it is time-barred. (Mot., at p. 21.) Based on the above ruling, the Court need not address Defendant's statute of limitations defense because Defendant is already entitled to summary adjudication of the section 98.6 claim.

B.

3rd

Cause of Action: Wrongful Termination in Violation of Public Policy (Issue Nos. 6, 7, & 8) – GRANTED

No

triable issues of material fact exist with respect to Plaintiff's third cause of action for wrongful termination. "The elements of a claim for wrongful discharge in violation of public policy are (1) an employer-employee relationship, (2) the employer terminated the plaintiff's employment, (3) the termination was substantially motivated by a violation of public policy, and (4) the discharge caused the plaintiff harm." (Garcia-Brower v. Premier Automotive Imports of CA, LLC (2020) 55 Cal.App.5th 961, 973 (Garcia-Brower); see CACI, Nos. 2430-2431.) Violations of public policy have generally been found where the employer is responding to one of the following four categories: (1) the employee refuses to violate a statute, (2) the employee performs a statutory obligation (3) the employee exercises a statutory right or privilege, or (4) the employee reports an "alleged violation of a statute of public importance..." (Gantt v. Sentry Insurance (1992) 1 Cal.4th 1083, 1090–1091 overruled on other grounds in Green v. Ralee Engineering Co. (1998) 19 Cal.4th 66.)

Here, like

Plaintiff's retaliation claims, Plaintiff's wrongful termination claim alleges that he was wrongfully terminated by Defendant because Plaintiff exercised rights or reported the violation of his rights under the Labor Code and for "resisting or complaining of unlawful business practices." (Compl., ¶¶ 14, 22.) Plaintiff concedes that his wrongful termination claim is based on a constructive discharge theory, rather than the actual termination of his employment. (Id. ¶ 14, 21.) Plaintiff's wrongful termination claim fails for the same reasons outlined above.

First,

Defendant argues that Plaintiff was not "constructively" terminated from his employment with Defendant. (Mot., at p. 17.) As discussed above, Plaintiff is unable to demonstrate that Defendant's categorical discontinuation of the entire night-shift position resulted in his "constructive discharge" as a matter of law. (See *supra*, Section I.A.2.a.) Specifically, Plaintiff has not demonstrated that the elimination of the night shift created working conditions that were so objectively intolerable and aggravated that Plaintiff was coerced to resign. (Turner, *supra*, 7 Cal.4th at pp. 1226-1248.)

Second,

Defendant argues that the decision to discontinue the night shift was not a violation of public policy. (Mot., at p. 19.) As discussed above, even if Plaintiff could establish that the elimination of the night-shift position was objectively intolerable, Plaintiff still fails to raise a triable factual dispute as to whether Defendant harbored an unlawful motive for the personnel change. (See *supra*, Section I.A.2.b.) Defendant has demonstrated, by clear and convincing evidence, that the night shift position was not financially viable due to its underperforming call data, and as a result, Defendant decided to discontinue the shift for all employees. (Lawson, *supra*, 12 Cal.5th at p. 708; Lampkin, *supra*, 112 Cal.App.5th at p. 924.) Plaintiff's reliance on temporal proximity to suggest a causal connection between his wage-and-hour complaints and the elimination of the night shift is insufficient to establish retaliatory pretext as a matter of law. (Arteaga, *supra*, 163 Cal.App.4th at p. 357.) Because Plaintiff cannot show that Defendant's decision was made for wrongful or unlawful reasons, no triable dispute of material fact exists as to whether Plaintiff's alleged "constructive termination" was "substantially motivated" by a violation of public policy. (Garcia-Brower, *supra*, 55 Cal.App.5th at p. 973.)

Therefore,

Defendant is entitled to summary adjudication in its favor on Plaintiff's third cause of action for wrongful termination.

C.

4th

Cause of Action: Unfair Competition – GRANTED

No

triable issues of material fact exist with respect to Plaintiff's fourth cause of action for violation of California's Unfair Competition Law ("UCL"). "By proscribing any unlawful business practice, section 17200 borrows violations of other laws and treats them as unlawful practices that the unfair competition law makes independently actionable." *Cel-Tech Communications, Inc. v. Los Angeles Cellular Telephone Co.* (1999) 20 Cal.4th 163, 180.) Thus, for purposes of the UCL, "[a]n 'unlawful' practice requires violation of another statute..." (*People ex rel. Dept. of Motor Vehicles v. Cars 4 Causes* (2006) 139 Cal.App.4th 1006, 1016; see *Klein v. Earth Elements, Inc.* (1997) 59 Cal.App.4th 965, 969 ["Virtually any law can serve as the predicate for a section 17200 action."].) As a result, "[w]hen a statutory claim fails, a derivative UCL claim also fails." (*Aleksick v. 7-Eleven, Inc.* (2012) 205 Cal.App.4th 1176, 1185.)

Here, Plaintiff's

claim for unfair business practices is admittedly derivative of the alleged "unlawful conduct" by Defendant underlying Plaintiff's retaliation and wrongful termination claims. (Compl., ¶ 28.)

Because the underlying Labor Code retaliation claims and wrongful termination in violation of public policy fail as a matter of law, Plaintiff's UCL claim, which is derivative of these claims, also must fail.

Therefore, Defendant is entitled to summary adjudication in its favor on Plaintiff's fourth cause of action for violation of the UCL.

In light

of the aforementioned analysis, Defendant's Motion for Summary Judgment is GRANTED in its entirety.[3]

II. EVIDENTIARY OBJECTIONS

Plaintiff

objects to the Declaration of Melissa Harris (nos. 1-17), the Declaration of Scott Smith (nos. 18-22), the Declaration of Joseph Diaz (nos. 23-29), and the Declaration of Dalia Khatib (nos. 30-32). The following evidentiary objections are OVERRULED: 1, 6, 11-18, 20-21, 23, 25-29, and 31-32. Additionally, pursuant to Code of Civil Procedure section 437c, subdivision (q), the following objections are deemed immaterial and not ruled upon at this time: 2-5, 7-10, 19, 22, 24, and 30.

Defendant

objects to the Declaration of Michael Brown (nos. 1-9). The following evidentiary objections are SUSTAINED: 4 in part (at p. 2:15-26) (D'Amico rule); and 7 (improper legal conclusion). The following objections are OVERRULED: 2, 3, 4 in part (at p. 2:13-15), 5, and 9. Additionally, pursuant to Code of Civil Procedure section 437c, subdivision (q), the following objections are deemed immaterial and not ruled upon at this time: 1, 6, and 8.

Defendant AmbuServe, Inc. to serve notice of ruling. This tentative ruling ("TR") shall be the order of the Court unless changed at the hearing and shall by this reference be incorporated into the Minute Order.

TR emailed to counsel and posted to court's website on 8/19/26 at 2 p.m.

[1] This motion was originally scheduled for May 2026, but it was rescheduled multiple times due to the Court's unavailability and at the request of the moving parties.

[2]

Additionally, while Plaintiff argues that Defendant's CEO was not aware of any "other shifts" that were audited for low volume, Plaintiff's implication that the night shift was not the only financially underperforming shift or that it was specifically targeted due to Plaintiff's complaints is merely speculative. (Opp., a p. 14; see Harris Depo., at p. 305:14-21.) As discussed above, Defendant demonstrates,

by clear and convincing evidence, that the night shift-only position was a newly created position and that it was the CEO's typical practice to re-evaluate profitability after approximately one year. Plaintiff fails to identify a single "other shift" to serve as a comparator to show that Plaintiff's position was treated in a materially different manner than other positions in similarly situated financial circumstances.

[3] Defendant also separately seeks summary adjudication of Plaintiff's request for punitive damages (see Issue No. 10). However, as there is no remaining cause of action to support this request, the Court need not analyze this issue separately.